

that Congress intended to uphold the validity of judicial and legislative immunity.⁴¹

It should be noted that although Mr. Justice Douglas upheld the general principle of judicial immunity, he was the sole dissenter in *Pierson v. Ray*.⁴² He recognized that judges should be exempt from liability for the consequences of their honest mistakes, but would have adopted the doctrine that a judge should be liable "for the knowing and intentional deprivation of a person's civil rights."⁴³ Justice Douglas also stated that the doctrine of judicial immunity is based on a corollary of the doctrine of sovereign immunity, namely, that the King could do no wrong.⁴⁴ This statement is highly questionable in light of the fact that none of the opinions from *Floyd and Barker* through *Bradley v. Fisher* equated the doctrine of judicial immunity with the maxim "The King can do no wrong." Every decision following Lord Coke based the doctrine on the need for judicial independence rather than the doctrine of sovereign immunity. Indeed, as previously discussed, Coke spent much of his judicial career attempting to subject the King to the law, not suggesting that he should rise above it.⁴⁵ Nevertheless, even Justice Douglas would have preserved judicial immunity save for the most outrageous conduct in which a judge knowingly and deliberately violates a person's civil rights.⁴⁶

The next challenge to judicial immunity occurred in the case of *Stump v. Sparkman*.⁴⁷ In *Stump*, the mother of a slightly retarded fifteen year old filed an ex parte petition with an Indiana circuit

41. *Pierson v. Ray*, 386 U.S. 547, 554-55 (1967).

42. *Id.* at 566 (Douglas, J., dissenting). Justice Douglas believed judges who make honest mistakes should not be subject to civil liability for those reasons enumerated by the majority. *Id.* (Douglas, J., dissenting). He believed, however, that the language and legislative history of the Civil Rights Act of 1871 compelled the conclusion that Congress did not intend to exclude all judicial acts from liability. *Id.* at 561-63 (Douglas, J., dissenting). Only by subjecting the judiciary to liability could Congress guarantee the protections of the Act by ensuring judges would not impinge upon civil rights. *Id.* at 566-67 (Douglas, J., dissenting).

43. *Id.* at 566 (Douglas, J., dissenting).

44. *Id.* at 565 n.5 (Douglas, J., dissenting).

45. See *supra* notes 4-6 and accompanying text (discussing conflicting views as to whether King subject to judiciary).

46. *Pierson v. Ray*, 386 U.S. 547, 564 (1967) (Douglas, J., dissenting). Justice Douglas believed that preserving absolute judicial immunity would allow a judge to "vent his spleen" on particular parties or groups without fear of recourse. *Id.* (Douglas, J., dissenting). According to Justice Douglas, such a result would be monstrous and undermine the effectiveness of the Civil Rights Act of 1871. *Id.* (Douglas, J., dissenting).

47. See *Stump v. Sparkman*, 435 U.S. 349, 364 (1978) (judges immune from liability for damages even if in error).